



INDIAN POLITY

STATE LEGISLATURE (PART-2)

MODULE – 84



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STATE LEGISLATURE

MEMBERSHIP OF STATE LEGISLATURE

ADDITIONAL DISQUALIFICATIONS IN THE REPRESENTATION OF PEOPLE ACT, 1951

- 1 He must not have been found guilty of certain **election offences** or corrupt practices in the elections.
- 2 He must not have been **convicted** for any offence resulting in imprisonment for two or more years.
- 3 But, the detention of a person under a **preventive detention law** is not a disqualification.
- 4 He must not have failed to lodge an **account of his election expenses** within the time.
- 5 He must **not have any interest in government contracts**, works or services
- 6 He must not be a director or managing agent nor hold **an office of profit in a corporation** in which the government has at least 25 per cent share.

STATE LEGISLATURE

MEMBERSHIP OF STATE LEGISLATURE

ADDITIONAL DISQUALIFICATIONS IN THE REPRESENTATION OF PEOPLE ACT, 1951



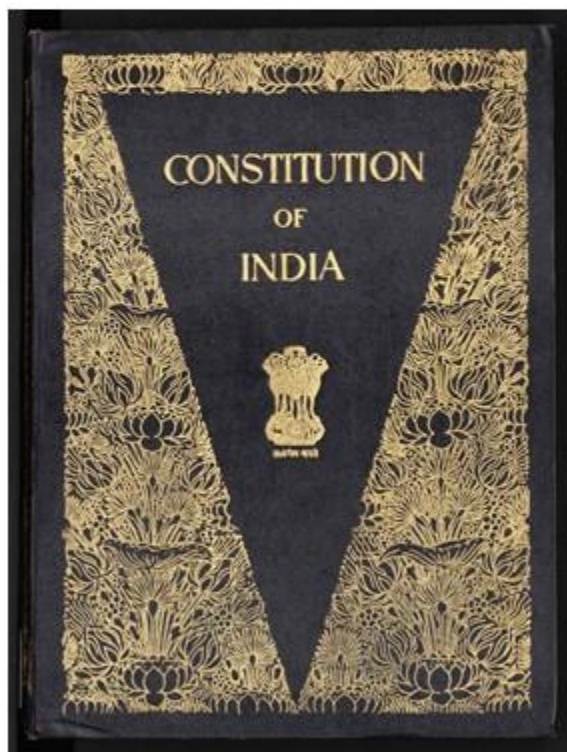
On the question of disqualification on these grounds, the decision of the Governor is final. However, he should obtain the opinion of the Election Commission and act accordingly.

- 7 He must not have been dismissed from government service for corruption or disloyalty to the state.
- 8 He must not have been convicted for promoting enmity between different groups or for the offence of bribery.
- 9 He must not have been punished for preaching and practicing social crimes such as untouchability, dowry and sati.

STATE LEGISLATURE

MEMBERSHIP OF STATE LEGISLATURE

DISQUALIFICATION ON THE GROUND OF DEFECTION



- 1 Here, the grounds of defection are mentioned in **Schedule X** of the Constitution.
- 2 The question of disqualification under the Tenth Schedule is decided by the **Chairman**, in the case of legislative council and, **Speaker**, in the case of legislative assembly.
- 3 The decision of Chairman/Speaker in this regard is subject to **judicial review**.

STATE LEGISLATURE

MEMBERSHIP OF STATE LEGISLATURE

VACATION OF SEATS

- 1 Double Membership:** A person cannot be a member of both Houses of state legislature at one and the same time. If a person is elected to both the Houses, his seat in one of the Houses falls vacant as per the provisions of a law made by the state legislature.
- 2 Disqualification:** If a member of the state legislature becomes subject to any of the disqualifications, his seat becomes vacant.
- 3 Resignation:** A member may resign his seat by writing to the Chairman of legislative council or Speaker of legislative assembly, as the case may be. The seat falls vacant when the resignation is accepted.
- 4 Absence:** A House of the state legislature can declare the seat of a member vacant if he absents himself from all its meeting for a period of sixty days without its permission.

STATE LEGISLATURE

MEMBERSHIP OF STATE LEGISLATURE

VACATION OF SEATS



5 Other Cases: A member has to vacate his seat in the either House of state legislature:

- ♦ if his election is declared void by the court.
- ♦ If he is expelled by the House
- ♦ If he is elected to the office of president or office of vice-president
- ♦ If he is appointed to the office of governor of a state.

STATE LEGISLATURE

PRESIDING OFFICERS OF THE STATE LEGISLATURE

SPEAKER OF ASSEMBLY



POWERS AND DUTIES OF SPEAKER

4 He **appoints the chairmen** of all the committees of the assembly and supervises their functioning. He himself is the chairman of the Business Advisory Committee, the Rules Committee etc.

3 He decides the questions of **disqualification** of a member of the assembly, arising on the ground of defection under the provisions of the Tenth Schedule.

1 He maintains **order and decorum** in the assembly for conducting its business and regulating its proceedings.

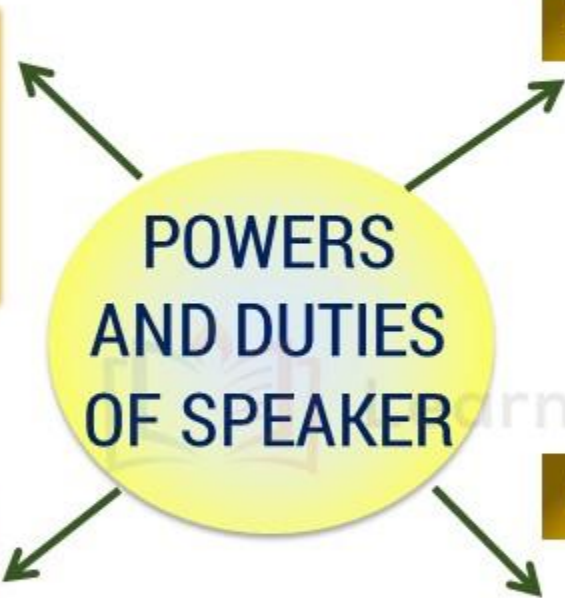
2 He is the **final interpreter** of the provisions of:

- ♦ The Constitution of India
- ♦ The rules of procedure and conduct of business of assembly
- ♦ The legislative precedents, within the assembly

STATE LEGISLATURE

PRESIDING OFFICERS OF THE STATE LEGISLATURE

SPEAKER OF ASSEMBLY



POWERS AND DUTIES OF SPEAKER

8 He decides whether a bill is a **Money Bill or not** and his decision on this question is final.

5 He adjourns the assembly or suspends the meeting in the absence of a **quorum**.

7 He can allow a '**secret**' sitting of the House at the request of the leader of the House

6 He does not vote in the first instance. But, he can exercise a **casting vote** in the case of a tie.

STATE LEGISLATURE

PRESIDING OFFICERS OF THE STATE LEGISLATURE

SPEAKER OF ASSEMBLY

The Speaker vacates his office earlier in any of the following three cases:



- 1 If he ceases to be a member of the assembly.
- 2 If he resigns by writing to the deputy speaker.
- 3 If he is removed by a resolution passed by a majority of all the then members of the assembly. Such a resolution can be moved only after giving 14 days advance notice.

STATE LEGISLATURE

PRESIDING OFFICERS OF THE STATE LEGISLATURE

DEPUTY SPEAKER OF ASSEMBLY

DUTIES OF DEPUTY SPEAKER

- ◆ The Deputy Speaker performs the duties of the Speaker's office when it is vacant.
- ◆ He also acts as the Speaker when the latter is absent from the sitting of assembly.
- ◆ In both the cases, he has all the powers of the Speaker.

CASES WHEN THE DEPUTY SPEAKER VACATES HIS OFFICE

- ◆ If he ceases to be a member of the assembly.
- ◆ If he resigns by writing to the speaker.
- ◆ If he is removed by a resolution passed by a majority of all the then members of the assembly. Such a resolution can be moved only after giving 14 days advance notice.

STATE LEGISLATURE

PRESIDING OFFICERS OF THE STATE LEGISLATURE

CHAIRMAN OF COUNCIL



POWERS & FUNCTIONS OF CHAIRMAN

5 They are charged on the **Consolidated Fund of the State** and thus are not subject to the annual vote of the state

4 As in the case of the Speaker, the salaries and allowances of the Chairman are also fixed by the state legislature.

1 As a presiding officer, the powers and functions of the Chairman in the council are similar to those of the Speaker in the assembly.

2 However, the **Speaker has one special power** which is not enjoyed by the Chairman.

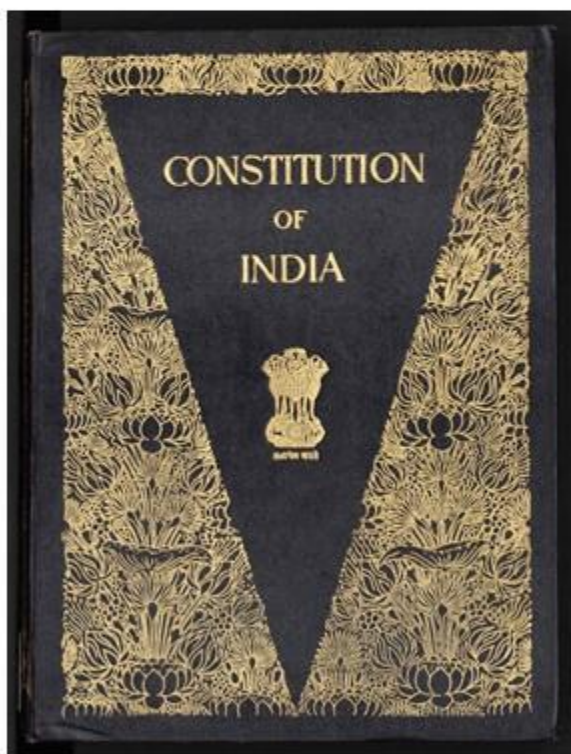
3 The Speaker decides whether a bill is a Money Bill or not and his decision on this question is final.

STATE LEGISLATURE

PRESIDING OFFICERS OF THE STATE LEGISLATURE

CHAIRMAN OF COUNCIL

The Chairman vacates his office in any of the following three cases:



- 1 If he ceases to be a member of the council.
- 2 If he resigns by writing to the deputy chairman
- 3 If he is removed by a resolution passed by a majority of all the then members of the council. Such a resolution can be moved only after giving 14 days advance notice.

STATE LEGISLATURE

PRESIDING OFFICERS OF THE STATE LEGISLATURE

DEPUTY CHAIRMAN OF COUNCIL

DUTIES OF DEPUTY CHAIRMAN

- ◆ The Deputy Chairman performs the duties of the Chairman's office when it is vacant.
- ◆ He also acts as the Chairman when the latter is absent from the sitting of the council.
- ◆ In both the cases, he has all the powers of the Chairman.

CASES WHEN THE DEPUTY CHAIRMAN VACATES HIS OFFICE

- ◆ if he ceases to be a member of the council.
- ◆ If he resigns by writing to the Chairman.
- ◆ If he is removed by a resolution passed by a majority of all the then members of the council. Such a resolution can be moved only after giving 14 days advance notice.

STATE LEGISLATURE

SESSIONS OF STATE LEGISLATURE

SUMMONING

- ♦ The governor from time to time summons each House of state legislature to meet.
- ♦ The maximum gap between the two sessions of state legislature **cannot be more than six months**, i.e., the state legislature should meet at least twice a year.

ADJOURNMENT

An adjournment suspends the work in a sitting for a **specified time** which may be hours, days or weeks.

ADJOURNMENT SINE DIE

- ♦ Adjournment sine die means **terminating a sitting of the state legislature** for an indefinite period.
- ♦ The power of the adjournment as well as adjournment sine die lies with the **presiding officer** of the House.

STATE LEGISLATURE

SESSIONS OF STATE LEGISLATURE

PROROGATION

- ◆ The presiding officer (Speaker or Chairman) declares the House adjourned sine die, when the business of the session is completed.
- ◆ Within the next few days, the governor issues a notification for prorogation of the session.
- ◆ However, the governor can also prorogue the House which is in session.
- ◆ Unlike an adjournment, a prorogation terminates a session of the House.

QUORUM

- ◆ Quorum is the minimum number of members required to be present in the House before it can transact any business.
- ◆ It is ten members or one-tenth of the total number of members of the House (including the presiding officer), whichever is greater.
- ◆ If there is no quorum during a meeting of the House, it is the duty of the presiding officer either to adjourn the House or to suspend the meeting until there is a quorum.

STATE LEGISLATURE

SESSIONS OF STATE LEGISLATURE

DISSOLUTION



- 1** The legislative council, being a permanent house, is not subject to dissolution.
- 2** Only the legislative assembly is subject to dissolution.
- 3** Unlike a prorogation, a dissolution ends the very life of the existing House, and a new House is constituted after the general elections are held.

STATE LEGISLATURE

SESSIONS OF STATE LEGISLATURE

DISSOLUTION

4 The position with respect to lapsing of bills on the dissolution of the assembly is mentioned below:

a A Bill pending in the assembly lapses (whether originating in the assembly or transmitted to it by the council).

b A Bill passed by the assembly but pending in the council lapses.

c A Bill pending in the council but not passed by the assembly does not lapse.

d A Bill passed by the assembly (in a unicameral state) or passed by both the houses but pending assent of the governor or the President does not lapse.

e A Bill passed by the assembly or passed by both the Houses but returned by the president for reconsideration of House does not lapse.

STATE LEGISLATURE

SESSIONS OF STATE LEGISLATURE

VOTING IN HOUSE



- ♦ All matters at any sitting of either House are decided by a majority of votes of the members present and voting excluding the presiding officer.
- ♦ The presiding officer (i.e., Speaker in the case of assembly or chairman in the case of council or the person acting as such) does not vote in the first instance, but exercises a casting vote in the case of an equality of votes.

STATE LEGISLATURE

SESSIONS OF STATE LEGISLATURE

OFFICIAL LANGUAGE OF THE STATE

- ♦ The Constitution has declared the official language(s) of the state or Hindi or English, to be the languages for transacting business in the state legislature.
- ♦ However, the presiding officer can permit a member to **address the House in his mother-tongue**.

RIGHTS OF MINISTERS AND ADVOCATE GENERAL

In addition to the members of a House, every minister and the advocate general of the state have the right to speak and take part in the proceedings of either House or any of its committees of which he is named a member, without being entitled to vote.

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